

SOTOMAYOR, J., concurring in part

ory of dual-track incorporation also fared no better: He recognized that his argument on that score came “late in the day.” *Johnson v. Louisiana*, 406 U. S. 356, 375 (1972) (concurring opinion).

Moreover, “[t]he force of *stare decisis* is at its nadir in cases concerning [criminal] procedur[e] rules that implicate fundamental constitutional protections.” *Alleyne*, 570 U. S., at 116, n. 5. And the constitutional protection here ranks among the most essential: the right to put the State to its burden, in a jury trial that comports with the Sixth Amendment, before facing criminal punishment. See *Codispoti v. Pennsylvania*, 418 U. S. 506, 515–516 (1974) (“The Sixth Amendment represents a deep commitment of the Nation to the right of jury trial in serious criminal cases as a defense against arbitrary law enforcement” (internal quotation marks omitted)). Where the State’s power to imprison those like Ramos rests on an erroneous interpretation of the jury-trial right, the Court should not hesitate to reconsider its precedents.

II

In contrast to the criminal-procedure context, “[c]onsiderations in favor of *stare decisis* are at their acme in cases involving property and contract rights.” *Payne*, 501 U. S., at 828. Despite that fact, the Court has recently overruled precedent where the Court’s shift threatened vast regulatory and economic consequences. *Janus v. State, County, and Municipal Employees*, 585 U. S. 878 (2018); *id.*, at 952 (KAGAN, J., dissenting) (noting that the Court’s opinion called into question “thousands of . . . contracts covering millions of workers”); see *South Dakota v. Wayfair, Inc.*, 585 U. S. 162, 186 (2018) (noting the “legitimate” burdens that the Court’s overruling of precedent would place on vendors who had started businesses in reliance on a previous decision).

This case, by contrast, threatens no broad upheaval of private economic rights. Particularly when compared to the interests of private parties who have structured their affairs